STANDARD OPERATING PROCEDURE			P-4000	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **02/10/22**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 60-695 THROUGH 60-698 INSTRUCTIONS FOR COMPLETING INVESTIGATOR'S MOTOR VEHICLE ACCIDENT REPORTS			
SUBJECT TRAFFIC CRASH INVESTIGATION	CROSS REFERENCE P-3900 DUI INVESTIGATIONS P-4010 SERIOUS PERSONAL INJURY OR FATALITY TRAFFIC ACCIDENTS P-4820 INTERVIEW AND MIRANDA WARNINGS I-6200 EVIDENCE AND PROPERTY			

I. Purpose:

The purpose of this policy is to establish procedures for investigating a traffic crash.

II. Policy:

The Sarpy County Sheriff's Office shall conduct crash investigations in order to protect the public, enforce any traffic law violations, restore orderly traffic flow, and record information as required by law.

III. Definitions:

A. Crash: An unstabilized situation that includes at least one harmful event. Intentional acts, such as ramming a vehicle or leaping from a vehicle, are not crashes. Examples of reportable crashes:

1. A motor vehicle strikes another motor vehicle, parked or in transport, causing damage or injury.
2. Severe damage or serious injury as a result of a vehicle colliding with a railway train.
3. A pedestrian is injured after being struck by a motor vehicle.
4. A vehicle strikes a fixed object.
5. A motor vehicle strikes a deer, causing damage to the vehicle.
6. A motor vehicle is damaged after it strikes a pothole or bump in the road surface.
7. A fire, which started in a moving motor vehicle, causes damage (a motor vehicle parked on private property that catches fire is not a reportable.
8. A vehicle strikes debris on the roadway causing damage.

9. A vehicle is struck by a stone set in motion by another vehicle causing damage.

B. **CATACLYSM:** A natural occurrence or an "act of God" including: flood, lightning, tornado, hail, torrential rain, etc. Damage caused by cataclysm is not a reportable crash.

C. **MOTOR VEHICLE:** For purposes of determining if a reportable crash has occurred, a motor vehicle is any motorized transport vehicle (mechanically or electrically powered) that is designed primary to move person or property, along with the vehicle itself, from one place to another, with the following exceptions:

1. Aircraft
2. Watercraft
3. Vehicles operated on rails (i.e. trains)
4. Devices not designed primarily of moving persons or property, such as construction, farm or industrial machinery, army tanks, etc.
5. Devices used primarily within buildings
6. Skis, roller skates, baby carriages
7. Any truck that is doing work upon the roadway (e.g. a maintenance truck in the act of painting stripes on the road).
8. All-Terrain Vehicles (ATV)
9. Golf Carts

D. **IN TRANSPORT:** Refers to any motor vehicle that is in motion or on a roadway. A motor vehicle on a roadway is considered in transport, even when it is stopped, disabled, or abandoned. A vehicle legally parked or stopped totally on the shoulder is not in transport.

E. **LEGAL INTERVENTION:** When a law enforcement officer intentionally acts to stop a lawbreaker's vehicle. Vehicles damaged and persons injured as a result of legal intervention do not require state crash reports.

F. **ROADWAY:** The traveled portion of a trafficway. The shoulder and median are not part of the roadway.

G. **TRAFFICWAY:** Any land open to the public as a matter of right or custom for moving persons or property from one place to another. The limits of a trafficway include its entire width between property lines, or other boundaries (including shoulders).

H. **UNSTABILIZED SITUATION:** A set of events not under human control.

IV. Procedure:

A. Crash Investigation-Deputy Responsibilities: Deputies shall investigate and complete a state Investigator's Motor Vehicle Crash Report Form on any crashes involving any of the following:

1. A death or injury, on private or public property.

2. Property damage crashes occurring on **public** property when:

a) The damage to the property of any one person exceeds $1,500; or

b) Generally, when property damage crashes shall not be investigated, the drivers may be issued a Driver's Motor Vehicle Accident Report form (i.e. white copy).

3. A hit and run crash, on private or public property (also requires an offense report).

4. A driver impaired due to alcohol or drugs (see P-3900 DUI Investigations).

5. A vehicle carrying hazardous materials.

6. County-owned vehicles, on public or private property.

7. If one or more of the involved parties specifically requests a report be completed, but it does not meet the state-set requirements, the deputy shall complete an information report documenting the incident.

8. Due to an all-terrain vehicle and golf carts not meeting the definition of a motor vehicle, if just the ATV or golf cart are involved in the event, a motor vehicle crash report shall not be completed. Instead, Deputies should complete an incident report under 99-9036 PI Collision.

B. Crash Scene-Deputy Responsibilities:

1. Deputies should use caution when approaching the scene and be aware of any hazardous conditions such as slick roads, chemical spills, fires, or downed electrical wires. Deputies should also use caution to avoid destroying or altering any evidence (e.g. skid marks, debris, etc.).

2. Deputies should park their patrol units in such a way as to protect the scene and use available emergency lights to prevent further crashes.

3. The initial deputy should summon any necessary medical or fire units, and should determine the need for additional patrol units to provide assistance or direct traffic.

4. Deputies should inquire as to injuries, administer first aid to injured persons, and arrange for any necessary emergency treatment.

5. Deputies should attempt to allow traffic to continue flowing. If the crash is a minor property damage in nature and the vehicles are driveable, they should be moved to a safe location out of the flow of traffic. If the vehicles are not driveable and are a traffic hazard, the initial deputy should request tow trucks as soon as practical (provided a crash reconstructionist has not been requested). If the Crash Response Unit (CRU) has been requested, traffic shall be stopped and redirected to detour routes. Only a CRU Member can authorize traffic begin flowing through the crash scene once the CRU has arrived on scene.

6. Deputies should obtain an operator's license, a vehicle registration, a proof of insurance, and phone numbers from each involved driver. Deputies should also obtain demographic information for all injured persons.

7. Deputies should obtain statements from all drivers and witnesses. Statements should be obtained individually and away from other drivers and witnesses. If an injured driver is transported to a medical facility, the deputy shall go to the medical facility and interview the driver prior to completing his or her report.

8. If the deputy is unable to speak to a driver or a witness on the date of the crash he or she shall attempt to complete the interview on his or her next shift with permission from his or her shift supervisor. If the deputy is unable to make contact, the report shall be completed at that time noting the lack of contact.

9. Deputies shall wear a reflective traffic vest or ANSI class 3 jacket/coat when working at a crash scene (after preliminary contact) or directing traffic.

C. Rights Advisory-Deputy Responsibilities:

1. Deputies may consider advising drivers or suspects of their rights under the Miranda decision under the following conditions:

a) Individual is a suspect in a motor vehicle homicide.
b) Individual is a suspect in a hit and run personal injury crash.
c) Individual is a suspect in a hit and run property damage crash.
d) Individual is suspected of operating a motor vehicle under the influence of alcohol or drugs.
e) Individual is driving under suspension or revocation.

2. Upon arrival at the scene of a crash, a deputy may ask, "What happened?" of anyone at the scene. It is not necessary to provide Miranda Warnings in this instance.

3. For additional information, see P-4820 Interview and Miranda Warnings.

D. Crash Report Form-Deputy Responsibilities:

1. Crash Reports shall be completed on all reportable crashes in accordance with the Nebraska Department of Transportation publication, "Instructions for Completing Investigator's Motor Vehicle Crash Report Form."

2. Crash reports shall be completed using the Traffic and Criminal Software (TraCS) program. Every applicable box shall be completed. A hard copy DR40 Nebraska State Crash Form will not be accepted by transcription.

3. An Investigator's Supplemental Truck and Bus Crash Report is required for any accident involving:

a) A truck having a Gross Vehicle Weight Rating (GVWR) or Gross Combination Vehicle Weight Rating (GCVWR) of 10,001 pounds or more;
b) A vehicle displaying a hazardous materials placard; or
c) A bus designed to transport 9 or more passengers, including the driver.

4. **Diagrams:** Diagrams are required on all Crash Reports.

a) If the vehicles were moved prior to the deputy's arrival, he or she shall estimate their locations based on the evidence at the scene and complete a diagram.

b) Diagrams shall be completed accurately to reflect the relative position of all vehicles and objects.

c) Diagrams shall be labeled "Not to Scale," unless completed by a crash reconstructionist.

d) If a diagram is not completed, due to the crash not being investigated at the scene, the Deputy shall note in the narrative portion of the crash report why a diagram was not completed.

5. **Deputies** may use TraCS to provide involved drivers a Driver Exchange form or use carbon form Crash Reports to provide the involved drivers a copy of the Crash Report information. In multiple car crashes, a deputy may use multiple vehicle carbon forms.

a) Deputies may instruct parties wanting to obtain a crash report to go to www.crashdocs.org to facilitate purchasing the report online.

6. Deputies may provide a "white copy" to drivers involved in a crash when a DOT40 crash report is not completed by a Deputy.

7. If a Deputy determines a citation needs to be issued in a crash investigation, the Deputy shall note in the offense notes of the citation either "PD Crash" from property damage crashes and "PI Crash" for personal injury crashes.

8. When a Deputy has completed his/her crash report in the TraCS program, he/she shall send the report to a Supervisor for approval.

E. **Injury Crash Reporting:** If injuries are reported at the scene and medical attention at a medical facility is sought by an injured vehicle occupant(s), the deputy shall complete a traffic incident report with narrative under code "99-9036-PI Collision". This shall be completed in addition to the state Motor Vehicle Crash Report form.

F. **Crash Report Form-Supervisor Responsibilities:**

1. Supervisors shall review crash report forms sent to him/her via TraCS and check for information validation and errors.

2. If the report is in an acceptable form, he or she shall approve the form.

3. Unless extenuating circumstances exist, Supervisors shall ensure crash reports are reviewed prior to the end of his/her tour of duty.

G. **Evidence Collection-Deputy Responsibilities:**

1. **Photographs:** If possible, deputies shall take photographs of all crashes involving injuries, major property damage, or county vehicles. Photographs should include:

a) The vehicles involved including: exterior damage, interior conditions (including air bag deployment), final resting positions, and license plate numbers.
b) Skid marks and gouges.
c) The point of impact (if visible).
d) Debris including: blood, vehicle parts, and other objects.
e) The overall scene including: traffic signals and potential vision obstructions.
f) Any alcoholic beverages and/or narcotics.

2. **Measurements:** Generally, measurements do not need to be taken unless there is a critical injury or fatality. In these instances, the Crash Response Unit shall respond to investigate the crash and take appropriate measurements (see P-4010 Serious Personal Injury and Fatality Traffic Accidents).

   a) **Urgent Measurements:** In instances where evidence may be destroyed prior to the arrival of the Crash Response Unit (CRU), Deputies shall photograph and mark urgent pieces of evidence. Types of urgent evidence include, but are not limited to:
      (1) Body location(s)
      (2) Tire marks that are being destroyed by elements
      (3) Pertinent articles of clothing
      (4) Bodily fluids

3. **Physical Evidence:** All physical evidence (alcoholic beverages, narcotics, vehicle parts, etc.) obtained at a crash scene shall be handled and logged in accordance with established procedures (see I-6200 Evidence and Property).

H. **Hit and Run Crash-Deputy Responsibilities:** Hit and run crashes shall be investigated as crimes.

1. The responding deputy should inquire as to injuries, administer first aid to injured persons, and arrange for any necessary emergency treatment.

2. If the hit and run crash occurred just prior to the deputy being dispatched to the call, the deputy should attempt to obtain the following information:

   a) A description of the run vehicle.
   b) A license plate number for the run vehicle.
   c) A description of the run driver.
   d) A direction of travel for the run vehicle.
   e) A description of any known damage on the run vehicle.

3. After obtaining the above information, the deputy shall notify Communications. Communications shall broadcast the information.

4. The deputy should examine the scene for possible parts left by the run vehicle. Any identifiable parts (e.g. parts large enough to identify the run vehicle, or parts that identify the make or model of the run vehicle) should be taken as evidence (see G-10200 Evidence and Property).

5. In the case of a hit and run crash resulting in death or serious bodily injury:

   a) The on-duty shift supervisor shall notify the on-call investigator and the on-duty watch commander or the ADC.

b) The shift supervisor shall also request the Crash Response Unit (CRU).

c) Deputies should conduct a house-to-house survey along the route of the vehicles involved in an attempt to identify witnesses to the crash.

6. If the run vehicle is located, deputies shall attempt to determine the following:

a) Does the vehicle have damage that would match the crash, or has the vehicle been recently repaired.

b) Does the vehicle have any transferred evidence (e.g. hair, blood, paint, etc.).

c) The identity of the driver at the time of the crash.

d) If the driver knew he or she was involved in a crash.

e) If the driver attempted to evade his or her legal responsibilities.

7. N.R.S. 60-696 and 60-697 provide for penalties for leaving the scene of property damage and personal injury crashes. Both crimes are jailable. Individuals involved in crashes are required to:

a) Immediately stop at the scene.

b) Give his or her name, address, telephone number, and his or her operator's license number.

c) If the driver is involved in a crash with an unattended vehicle, he or she shall leave a note on the vehicle with the above information and contact an appropriate peace officer.

d) If the crash involves injuries, the driver must render assistance to the injured party(s).

e) If the driver who left the scene is the only injured party, he/she can only be charged with leaving the scene of a PD crash (60-696).

8. Deputies responding to hit and run crashes shall complete a state Crash Report and a hit and run incident report.

I. Late Report Crashes -Deputy Responsibilities:

1. Generally, deputies shall not investigate crashes that have been reported more than an hour after the incident, unless:

a) The crash involved injuries.
b) The crash was a hit and run.
c) Extenuating circumstances prevented immediate reporting.

2. In no case shall a multiple car crash report be filed by only one driver unless the crash was a hit and run. The investigating deputy shall complete follow-up investigation with all identified drivers prior to completing a crash report.

J. Abandoned Crashed Vehicle-Deputy Responsibilities: Vehicles found to be abandoned after what appears to be a crash shall be investigated as a leaving the scene of a crash crime.

1. If a Deputy encounters or is called to an abandoned vehicle that appears to be involved in a crash, Deputies shall make an attempt to contact the registered owner to investigate the circumstances surrounding the damage and who was operating the vehicle.

2. If the Investigating Deputy is unable to determine who the driver was or have contact with the registered owner, the Deputy shall tow the vehicle with a hold for crash investigation and complete an incident report.

3. If a Deputy cannot follow-up on his/her next duty shifts due to scheduled time off or other conflicts, or if the Deputy is unable to make contact with the suspected driver or registered owner over a prolonged period of time, he/she may forward the case to the Special Services Unit for follow-up by sending an email to the Special Services Unit Supervisor.

K. Damage to Lawns or Grounds-Deputy Responsibilities:

1. When a motor vehicle leaves the roadway and crosses a yard and is unintentionally involved in a collision with any object, the incident shall be investigated as a motor vehicle crash.

2. The investigating deputy shall determine if the act was accidental or intentional by gathering evidence at the scene including skid marks, witness accounts, etc.

a) If the investigating deputy believes the collision was not intentional, a Crash Report shall be completed and if the vehicle did not stop at the scene, the deputy shall complete a hit and run incident report.

b) If the investigating deputy believes the collision was intentional, a criminal mischief incident report shall be competed. No Crash Report shall be completed.

3. If a vehicle crosses a lawn or any ground, private or public, and causes damage without any other collision, a criminal mischief incident report shall be completed.

L. Crash Investigation-Supervisor Responsibilities:

1. If possible, an on-duty shift supervisor shall respond to all serious injury crashes.

2. The responding shift supervisor should notify the on-duty watch commander or the ADC in case of serious injuries.

3. The on-duty shift supervisor shall contact the Crash Response Unit Team Leader or refer to a CRU Team Member on-duty to determine the need for the Crash Response Unit to respond. The CRU Team Leader shall have the final authority to determine the need for the CRU or South Metro Crash Response Team (SMCRT). (see P-4010 Serious Personal Injury and Fatality Traffic Accidents).

4. Shift Supervisors shall approve all TraCS Crash Reports that a Deputy has sent him/her for approval by the end of each duty shift.